



CHAPTER 38.

An Act to amend the Government of India Act, 1935,
in certain respects. [26th October 1944.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Where (whether before or after the passing of this Act) by any provisions of a Proclamation under section ninety-three of the Government of India Act, 1935 (hereafter in this Act referred to as "the principal Act"), the retirement of any of the members of the Legislative Council of a Province is postponed, the term of office of all members of that Legislative Council who held office when those provisions came into force shall be treated as increased by the length of the period during which those provisions remain in force, together with such additional periods, if any, not exceeding twelve months, as the Governor in his discretion may by public notification direct for the purpose of securing that elections to that Council, other than elections to fill casual vacancies, are held at a convenient time of year.

Extension of
term of office
of members
of certain
Provincial
Legislative
Councils.

26 Geo. 5. &
1 Edw. 8. c. 2.

(2) Where the Governor gives such a direction as aforesaid, the direction may further provide that for such period not exceeding twelve months from the giving of the direction as may be specified therein, vacancies in all or any specified seats in the Council shall not be filled.

(3) If, on the coming into force (whether before or after the passing of this Act) of any such provisions of any such Proclamation as aforesaid, there is a vacancy in any of the seats of the Legislative Council in question, it shall not be filled while those provisions remain in force, and, if it is a casual vacancy, any person who, after those provisions have ceased to be in force, is chosen to fill it shall be chosen for a term of office increased to the extent specified in subsection (1) of this section.

Judges to vacate office on transfer.

2. At the end of the proviso to subsection (2) of section two hundred and twenty of the principal Act (which relates to the term of office of judges of High Courts) there shall be added the following paragraph :—

“(c) the office of a judge shall be vacated by his being appointed by His Majesty to be a judge of the Federal Court or of another High Court.”

Reduction of minimum number of advisers of Secretary of State.

3. In subsection (3) of section three hundred and fourteen of principal Act (which provides that while Part XIII of that Act is in operation the advisers of the Secretary of State shall be not more than twelve, nor less than eight, in number) for the word “eight” there shall be substituted the word “five”.

Leave of absence of Governor-General, &c.

4.—(1) In subsection (3) of section eighty-six of the Government of India Act set out in the Ninth Schedule to the principal Act (which provides that leave of absence shall not, in pursuance of that section, be granted to the Governor-General, the Commander-in-Chief or any other member of the Governor-General's Executive Council for any period exceeding four months or more than once during his tenure of office), after the words “this section” there shall be inserted the words “for urgent reasons of health or of private affairs”.

(2) For subsection (6) of the said section eighty-six (which provides for the granting to the Governor-General and the Commander-in-Chief of travelling allowances in addition to the leave allowances to which they are entitled under that section) there shall be substituted the following subsection :—

“(6) If the Governor-General or the Commander-in-Chief is granted leave for urgent reasons of public interest, the Secretary of State may—

(a) direct that he shall be entitled to receive during his absence his salary as fixed under the last foregoing section in lieu of the leave allowances to which he would otherwise be entitled under the last foregoing subsection ;

(b) grant to him, in addition to his salary as so fixed or any leave allowances, as the case may be, such allowances or further allowances in respect of travelling expenses as the Secretary of State may think fit”.

Amendment as to acting appointments during absence of Governor-General, &c., on leave.

5. For section eighty-seven of the Government of India Act set out in the said Ninth Schedule (which requires, where leave is granted to the Governor-General or to the Commander-in-Chief, the appointment of a person to act in his place during his absence) there shall be substituted the following section :—

“87.—(1) Where, in pursuance of the last foregoing section, leave is granted to the Governor-General for any

reason, or to the Commander-in-Chief for urgent reasons of health or of private affairs, a person shall be appointed to act in his place during his absence, and where leave is so granted to the Commander-in-Chief for urgent reasons of public interest, a person may be appointed to act in his place during his absence.

(2) Any such appointment shall be made by His Majesty by warrant under the Royal Sign Manual.

(3) A person appointed under this section to act in the place of the Commander-in-Chief may, if the Commander-in-Chief was a member of the Executive Council of the Governor-General, be also appointed by the Governor-General in Council to be a temporary member of that Council.

(4) A person appointed under this section shall, until the return to duty of the permanent holder of the office or, if he does not return, until a successor arrives, hold and execute the office to which he has been appointed and shall have and may exercise all the rights and powers thereof and shall be entitled to receive the emoluments and advantages appertaining to the office, forgoing the emoluments and advantages (if any) to which he was entitled at the time of his being appointed to that office."

6.—(1) The amendment made by section two of this Act in Supplemental. the principal Act shall be deemed to have been made therein immediately before the passing thereof.

(2) A copy of the principal Act giving effect to—

(a) the amendments mentioned in subsection (3) of section six of the India and Burma (Temporary and Miscellaneous Provisions) Act, 1942; and

5 & 6 Geo. 6.
c. 39.

(b) the amendments made by sections two, three, four and five of this Act,

shall be prepared and certified by the Clerk of the Parliaments and deposited with the Rolls of Parliament, and His Majesty's printer shall print in accordance with the copy so certified all copies of the principal Act which are printed after the said copy has been so prepared, certified and deposited.

7. This Act may be cited as the India (Miscellaneous Provisions) Act, 1944. Short title.